PRG-1011847

The Bagel Bakery /House of Bagels 1/1/15-12/31/15

Program Category: **1. US - Express**
Eligible Dates: **January 01, 2015 to December 31, 2015**
Program Volume: **7,585 Cases / 187,618 Pounds**

Eligible Operators

THE BAGEL BAKERY [0200823904]
MONTEREY, CA

Eligible Distributors

US FOODS, INC SAN FRANCISCO (4O) [0200046742]
LIVERMORE, CA

Notes

Terms and Conditions

RATE INFORMATION

The contract rate per item will be stated as follows:

I. Headquarter Rebate defined as a percent unit basis.

DETAILS

I. This pricing confirmation applies to all net purchases of eligible products by qualified locations for the time periods specified above. Net purchases are defined as gross sales dollars less returns, credits, cash discounts, and taxes. Invoices not paid within terms or invoices on which unauthorized deductions are taken will not be included in net purchases. Net purchases do not include orders where the Contractee does not take title to the product.

II. Headquarter Rebate (%) – Selection for the unit basis value is customer invoice price.

III. Supporting Documentation is required for all Allowance requests:

> Distributor Name with company location and Contract Number

> Kraft contract number

> Shipment dates for each sales transaction

> Customer name, Distributor customer number, rate of rebate by product along with complete unit address information

> Kraft product code number or GTIN number

> Description of product item pack, size, item brand & UOM

> Total cases purchased

> Requested case rates per product and total rebate dollar amount per product

IV. Kraft Foodservice reserves the right in its discretion to amend, revise, or terminate this pricing confirmation at any time upon 15 days' notice.

V. This pricing confirmation does not automatically renew and is only applicable to the dates stated above.

PAYMENT CALCULATION & SETTLEMENT

I. Kraft will review Headquarter Rebate submissions for errors. Kraft may approve or deny submissions in its reasonable discretion.

II. Headquarter Rebate (%): The calculation will be determined by multiplying the Headquarter Rebate % by the customer invoice price.

CLAIM SUBMISSION

I. Billback claims should be directed to Blacksmith Applications. Please reference the Contract ID # above on claim submission.

II. Electronic submission is the preferred method for Billback claim settlement. Blacksmith Applications can accept electronic data transmission via EDI, FTP retrieval or email. Our file preference would be EDI, formatted text delimited, Excel, or CSV formats. If you are interested in electronic claims submission please send email to the address listed below.

III. Please include the Contract ID # in all communications

IV. Billback claims sent via email should be directed to the following address: kraftclaims@blacksmithapps.com

OR mail paper claims to:

Kraft Foods Group – Claims Processing

P. O. Box 15887

Pittsburgh, PA 15244

V. Collection of Allowances and/or Rebates: Subject to any provision to the contrary of these terms, Kraft will only pay claims for eligible goods sold within 365 days of the submitted date.

Accepted By:		Accepted By:	INC SAN FRANCISCO (4O),US FOODS
Name:		Name:	
Signature:		Signature:	
Date:	October 22, 2015	Date:	